



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
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MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Connor White, Planner II
Subject: County Pocket Annexation #4
Date: October 14, 2024

Background:

The item for consideration is a resolution to allow the City to proceed with a City-initiated annexation. Annexation of County pockets is a 2022 City Council priority. A "County pocket" is an area of unincorporated land 100% surrounded by the City of Cheyenne.

The proposed Governing Body review schedule is as follows:

- Introduction and referral October 14, 2024
- Public Services Committee October 22, 2024
- Final consideration October 28, 2024

This annexation is comprised of 26 properties 100% surrounded by the City (See attached map). Of the 26 parcels, 23 are developed with residential uses and others are undeveloped or incorporated into adjacent parcels under similar ownership. The City has maintained contact with the County Planning Office to coordinate any pending permits or development reviews. Currently there are no active permits or development specific to the properties proposed for annexation.

On September 25, 2024, City staff mailed a courtesy notice by first class mail to all landowners included in this annexation area inviting them to a "Question and Answer" on Wednesday, October 9, 2024.

Annexation also requires establishing a City zone. Staff has created a tentative timeline for the annexation and establishment of City zoning districts for the subject properties. Zone districts will be established on the assigned zoning process of Unified Development Code (UDC) section 2.2.8. In the event of split zoning (where two zone districts divide an existing tract of land), the City intends to apply the more restrictive zone unless extenuating circumstances exist.

Estimated Annexation Timeline*

Monday, October 14, 2024	Resolution certifying compliance introduction
Tuesday, October 22, 2024	Public Services Committee
Monday, October 28, 2024	Final consideration of resolution
Monday, November 4, 2024	Zoning consideration by Planning Commission
Tuesday, November 12, 2024	Annexation and Zoning ordinances Governing Body public hearing (annexation) and introduction and referral
Tuesday, November 19, 2024	Annexation and Zoning ordinances Public Services Committee
Monday, November 25, 2024	Annexation and Zoning ordinances Governing Body second reading
Tuesday, December 3, 2024	Annexation and Zoning ordinances Public Services Committee
Tuesday, December 9, 2024	Annexation and Zoning ordinances Governing Body third and final Reading
Approximately December 13, 2024	Annexation ordinance and map recording

*Dates subject to change.

Attachments:

1. Resolution

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION CERTIFYING COMPLIANCE WITH WYOMING STATUTE § 15-1-402 FOR THE CITY-INITIATED ANNEXATION OF VARIOUS TRACTS OF LAND COMPLETELY SURROUNDED BY CURRENT CITY LIMITS SITUATE IN NORTHEAST CHEYENNE GENERALLY LOCATED EAST OF RIDGE ROAD, WEST OF WHITNEY ROAD AND ALONG DELL RANGE BOULEVARD."

WHEREAS, the City of Cheyenne desires to initiate annexation proceedings for various tracts of land situate in northeast Cheyenne as shown in in Attachment A which is attached hereto and incorporated herein, and more particularly described as follows:

Area #1

WEST 158' OF THE EAST 431.03' OF TRACT 24, DELL RANGE ADDITION, 2ND FILING, LARAMIE COUNTY, WYOMING

SAID PARCEL CONTAIN 2.14 ACRES MORE OR LESS;

Area #2

TRACT 39, PLUS 30' OF GREGG WAY ADJACENT ON THE NORTH PROPERTY LINE OF TRACT 39 VACATED PER RES. 951017-04, TRACT 42 AND TRACT 43, DELL RANGE ADDITION, 4TH FILING.

SAID PARCELS CONTAIN 3.69 ACRES MORE OR LESS;

Area #3

NE $\frac{1}{4}$ TRACT 35, EXCEPT (.41 ACRE) THE FOLLOWING PARCEL: BEGINNING AT THE SE CORNER OF THE NE $\frac{1}{4}$ TRACT 35; THENCE NORTH ALONG THE EAST BOUNDARY OF SAID TRACT 35, 120' TO A POINT; THENCE WEST, 150' TO A POINT; THENCE SOUTH, 120' TO A POINT ON THE SOUTH BOUNDARY OF SAID NE $\frac{1}{4}$ OF TRACT 35; THENCE EAST ALONG THE SOUTH BOUNDARY OF SAID NE $\frac{1}{4}$ OF TRACT 35, 150' TO THE POINT OF BEGINNING.

THE EAST 270' OF THE SW $\frac{1}{4}$ OF TRACT 35.

THE NW $\frac{1}{4}$ OF TRACT 35

THE WEST 40 FEET OF THE SW $\frac{1}{4}$ TRACT 35.

ALL IN HILL HEIGHTS ADDITION, LARAMIE COUNTY, WYOMING.

SAID PARCELS CONTAIN 6.20 ACRES MORE OR LESS;

Area #4

A PORTION OF TRACT 39, HILL HEIGHTS ADDITION, ACCORDING TO THE OFFICIAL PLAT RECORDED IN THE RECORDS OF LARAMIE COUNTY, WYOMING, BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

BEGINNING AT A POINT ON THE WEST LINE OF SAID TRACT 39 FROM WHICH THE SOUTHWEST CORNER THEREOF, A 5/8" REBAR WITH SURV KAP STAMPED "LS 519", BEARS S.0°22'20"W. BASED ON SOLAR OBSERVATION 198.00 FEET DISTANT; THENCE S.88°54'10"E., PARALLEL TO THE SOUTH LINE OF SAID TRACT 39, A DISTANCE OF 139.91 FEET; THENCE N.0°22'20"E., PARALLEL TO THE WEST LINE OF SAID TRACT 39, A DISTANCE OF 294.00 FEET; THENCE N.88°54'10"W., PARALLEL TO THE SOUTH LINE OF SAID TRACT 39, A DISTANCE OF 139.91 FEET TO A POINT ON THE WEST LINE OF SAID TRACT 39; THENCE S.0°22'20"W. (SOUTH, RECORD) A DISTANCE OF 294.00 FEET TO THE POINT OF BEGINNING.

STARTING AT A POINT ON THE SOUTH LINE OF SECTION 23, TOWNSHIP 14 NORTH, RANGE 66 WEST OF THE 6TH P.M., LARAMIE COUNTY, WYOMING, 1,500 FEET EAST OF THE SOUTHWEST CORNER OF SAID SECTION, THENCE EAST ALONG THE SOUTH LINE OF SAID SECTION A DISTANCE OF 186 FEET, THENCE NORTH AT RIGHT ANGLES WITH THE SOUTH LINE OF SAID SECTION A DISTANCE OF 232 FEET, THENCE WEST AT RIGHT ANGLES WITH SAID LAST DESCRIBED LINE AND PARALLEL TO THE SOUTH LINE OF SAID SECTION, A DISTANCE OF 186 FEET, AND THENCE SOUTH AT RIGHT ANGLES WITH SAID LAST DESCRIBED LINE A DISTANCE OF 232 FEET TO THE POINT OF BEGINNING ON THE SOUTH LINE OF SAID SECTION, LARAMIE COUNTY, WYOMING.

BEING A PORTION OF TRACT 39, HILL HEIGHTS ADDITION, ACCORDING TO THE OFFICIAL PLAT RECORDED IN THE RECORDS OF LARAMIE COUNTY, WYOMING, AND BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

BEGINNING AT THE SOUTHWEST CORNER OF SAID TRACT 39, A 5/8" REBAR WITH SURV KAP STAMPED "LS519"; THENCE S.88°54'10"E. BY SOLAR OBSERVATION (S.89°26'E., RECORD), ALONG THE SOUTH LINE OF SAID TRACT 39, A DISTANCE OF 139.91 FEET (140 FEET, RECORD); THENCE N.0°22'20"E. (NORTH, RECORD), A DISTANCE OF 198.00 FEET; THENCE N.88°54'10"W., PARALLEL TO THE SOUTH LINE OF SAID TRACT 39, A DISTANCE OF 139.91 FEET TO A POINT ON THE WEST LINE OF SAID TRACT 39; THENCE S.02°22'20"W. (SOUTH, RECORD), ALONG LAST MENTIONED LINE, A DISTANCE OF 198.00 FEET TO THE POINT OF BEGINNING, LARAMIE COUNTY, WYOMING.

THE EAST 190 FEET OF THE SE1/4 OF TRACT 36, EXCEPT THE NORTH 132 FEET OF THE EAST 120 FEET AND THE ADJACENT RIGHTS OF WAY OF DELL RANGE BOULEVARD AND VAN BUREN AVENUE, LARAMIE COUNTY, WYOMING.

SAID PARCELS CONTAIN 4.41 ACRES MORE OR LESS;

Area #5

BEING A TRACT OF LAND SITUATE IN THE NEL/4 OF THE NWL/4 OF SECTION 26, TOWNSHIP 14 NORTH, RANGE 66 WEST OF THE 6TH P.M., LARAMIE COUNTY, WYOMING; ALSO BEING THE E1/2 OF THAT CERTAIN TRACT OF LAND LAST CONVEYED TO ROALND W. WONCH, ET UX, BY THAT CERTAIN WARRANTY DEED RECORDED IN BOOK 919, PAGE 372 ON THE 19 TH DAY OF FEBRUARY 1971, AT THE OFFICE OF THE LARAMIE COUNTY CLERK AND EX-OFFICIO REGISTER OF DEEDS AND BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

BEGINNING AT THE NORTHEAST CORNER OF SAID LANDS CONVEYED BY AFOREMENTIONED WARRANTY DEED, THENCE S.0°01'E. BASED ON SOLAR OBSERVATION, ALONG THE EAST LINE OF SAID TRACT, A DISTANCE OF 40.00 FEET TO THE TRUE POINT OF BEGINNING, SAID POINT LYING ON THE SOUTH RIGHT-OF-WAY LINE OF DELL RANGE BOULEVARD, A 7/8" DIA. REBAR; THENCE CONTINUING S.0°01'E., ALONG SAID EAST LINE, A DISTANCE OF 234.76 FEET TO THE SOUTHEAST CORNER OF SAID TRACT, A 7/8" DIA. REBAR; THENCE N.88°59'W. ALONG THE SOUTH LINE OF SAID TRACT, A DISTANCE OF 79.28 FEET TO A 5/8" DIA. REBAR WITH SURV KAP; THENCE N.0°01'W., A DISTANCE OF 234.76 FEET, TO A POINT ON AFOREMENTIONED RIGHT-OF-WAY LINE, A 5/8" DIA. REBAR WITH SURV KAP; THENCE S.88°59'E., ALONG SAID RIGHT-OF-WAY LINE, A DISTANCE OF 79.28 FEET TO THE TRUE POINT OF BEGINNING.

AND

A TRACT OF LAND IN THE WL/2NE1/4NW1/4 OF SECTION 26, TOWNSHIP 14 NORTH, RANGE 66 WEST OF THE 6TH P.M., LARAMIE COUNTY, WYOMING DESCRIBED AS FOLLOWS:

BEGINNING AT A POINT OF THE WEST LINE OF SAID W1/2NE1/4NW1/4, 274.56 FEET SOUTH OF THE NORTHWEST CORNER OF SAID W1/2NE1/4NW1/4; THENCE EAST, PARALLEL TO THE NORTH LINE OF THE W1/2NE1/4NW1/4, 317.13 FEET; THENCE SOUTH, PARALLEL TO THE WEST LINE OF SAID W1/2NE1/4NW1/4, 143 FEET; THENCE WEST, PARALLEL TO THE NORTH LINE OF SAID W1/2NE1/4NW1/4, 317.13 FEET; THENCE NORTH ALONG THE WEST LINE OF SAID W1/2NE1/4NW1/4 143 FEET TO THE POINT OF BEGINNING.

SAID PARCELS CONTAIN 1.47 ACRES MORE OR LESS;

Area #6

NW1/4 OF TRACT 33, HILL HEIGHTS ADDITION, LARAMIE COUNTY, WYOMING.

AND

NE¼ OF TRACT 33, HILL HEIGHTS ADDITION, LARAMIE COUNTY, WYOMING

SAID PARCELS CONTAIN 4.4 ACRES MORE OR LESS;

Area #6

TRACTS 2, 3 AND 4, SPEAR SUBDIVISION, LARAMIE COUNTY, WYOMING.

THE WEST 171.2' OF THE SOUTH 314.7' AND THE WEST 140.1' OF THE NORTH 330.8' OF THE EAST 1/2 OF TRACT 37, HILL HEIGHTS ADDITION, LARAMIE COUNTY, WYOMING.

THE EAST 140' OF NORTH 330.8' OF THE EAST 1/2 OF TRACT 37, HILL HEIGHTS ADDITION, LARAMIE COUNTY, WYOMING.

THE EAST 109.33' OF THE SOUTH 306.9' OF THE EAST 1/2 OF TRACT 37, HILL HEIGHTS ADDITION, LARAMIE COUNTY, WYOMING.

ALL OF JAMES DRIVE ADJACENT TO THE WEST ½ OF TRACT 38, HILL HEIGHTS ADDITION, LARAMIE COUNTY, WYOMING.

THE WEST ½ OF TRACT 38, HILL HEIGHTS ADDITION, LARAMIE COUNTY, WYOMING.

THE WEST ½ OF EAST ½ OF TRACT 38, HILL HEIGHTS ADDITION, LARAMIE COUNTY, WYOMING.

THE NORTH ½ OF THE EAST½ OF THE EAST½ OF TRACT 38, HILL HEIGHTS ADDITION, LARAMIE COUNTY, WYOMING.

THE SOUTH ½ OF THE EAST½ OF THE EAST½ OF TRACT 38, HILL HEIGHTS ADDITION, LARAMIE COUNTY, WYOMING.

SAID PARCELS CONTAIN 16.06 ACRES MORE OR LESS;

WHEREAS, Wyoming Statute § 15-1-404 specifies the requirements for initiating annexation proceedings by cities and towns and requires that a resolution be adopted certifying compliance with Wyoming Statute § 15-1-402;

WHEREAS, based on reasonable evidence, the Governing Body has determined that the territory to be annexed complies with Wyoming Statute § 15-1-402 and meets the following criteria found in Wyoming Statute § 15-1-402(a):

- (i) The annexation of the area is for the protection of the health, safety and welfare of the persons residing in the area and in the City of Cheyenne;
- (ii) The urban development of the area sought to be annexed would constitute a natural, geographical, economical and social part of the City of Cheyenne;
- (iii) The areas sought to be annexed is a logical and feasible addition to the City of Cheyenne and the extension of basic and other services customarily available to residents of the city or town shall, within reason, be available to the area proposed to be annexed;
- (iv) The area sought to be annexed is contiguous with or adjacent to the City of Cheyenne;
- (v) The Governing Body is prepared to issue one (1) or more franchises as necessary to serve the annexed area pursuant to Wyoming Statute § 15-1-410; and,
- (vi) The City of Cheyenne is prepared to, not less than twenty (20) business days prior to the public hearing required by Wyoming Statute § 15-1-405(a), send by certified mail to all landowners and affected public utilities within the territory a summary of the annexation report as required under Wyoming Statute § 15-1-402(c) and notice of the time, date and location of the public hearing required by Wyoming Statute § 15-1-405(a).

WHEREAS, an annexation report has been created by the City of Cheyenne, containing, at a minimum, the required information from Wyoming Statute § 15-1-402(c);

WHEREAS, The City of Cheyenne shall prepare for each landowner and affected public utility so requesting in writing, the estimated cost of infrastructure improvements required of the landowner and affected public utility related to the annexation pursuant to Wyoming Statute § 15-1-402(e);

WHEREAS, the annexation of this territory will not create an area which is situated entirely within the boundaries of the City of Cheyenne, following criteria found in Wyoming Statute § 15-1-406(d); and

WHEREAS, the Governing Body finds the territory to be annexed does not meet the criteria specified under Wyoming Statute § 15-1-412, and thus does not require the written consent of the owner of the territory before being annexed by the City of Cheyenne.

NOW, THEREFORE BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, THAT the land described above is compliant with Wyoming Statute §15-1-402, and that the procedures outlined in Wyoming Statute § 15-1-405 and Wyoming Statute § 15-1-406 shall hereby be initiated.

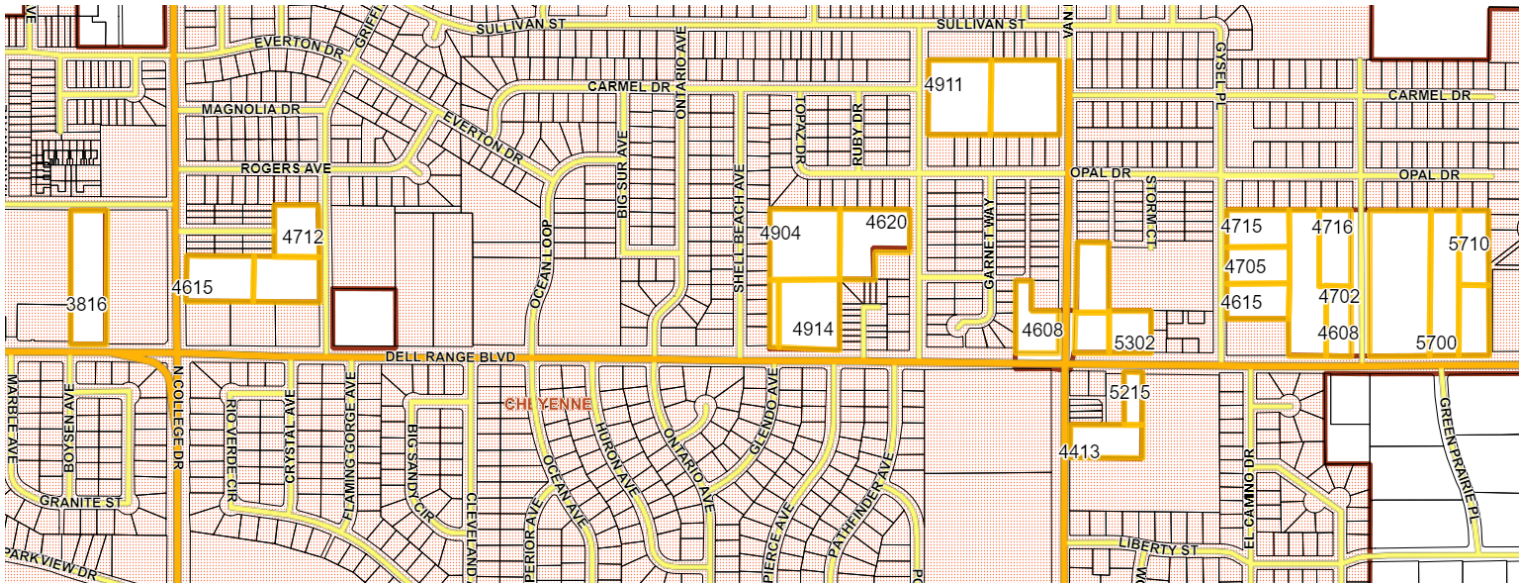
PRESENTED, READ AND ADOPTED this _____ day of _____,
2023.

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kristina F. Jones, City Clerk



Attachment A